

23VECV02769 23VECV02769

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Case Number: 23VECV02769 Hearing Date: July 28, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Constance Wiggins,

Plaintiff,

v.

Ibrahima El Hadji Cisse, et al.

Defendants.

Case Number Department

23VECV02769 107

COURT'S [TENTATIVE]

ORDER RE:

Motion to Quash Subpoenas

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

(1) Grant Motion; (2) Grant

Defendants' request for monetary sanctions in the reduced sum of \$1,842.50; (3)

Deny Plaintiff's request for monetary sanctions.

I.

BACKGROUND

This

matter arises from a motor vehicle accident that occurred on April 26, 2023, at I-101 Northbound 30 feet south of Winnetka Avenue. (Complaint p. 4.) On June 26, 2023, Plaintiff Constance Wiggins ("Plaintiff") filed a complaint against Defendants Ibrahima El Hadji Cisse, Amador Solorio, Jaguar Land Rover North America, LLC, and Does 1 to 50, alleging causes of action for: (1) motor vehicle; and (2) general negligence.

On

September 19, 2023, Plaintiff filed requests to dismiss Defendant Jaguar Land Rover North America LLC and Defendant Amador Solorio and those Defendants were dismissed.

On

July 2, 2026, Defendants Jaguar Land Rover Woodland Hills fdba Terry York Motor Cars, Ltd. dba Land Rover Encino erroneously sued and served as Jaguar Land Rover North America LLC and Ibrahima El Hadji Cisse ("Defendants") filed a motion to quash Plaintiff's subpoenas for workers compensation records (the "Motion"). On July 15, 2026, Plaintiff filed an opposition. On July 21, 2026, Defendants filed a reply.

II.

LEGAL

STANDARD

The

court can make an order quashing or modifying a subpoena as necessary to protect a person from "unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1, subd. (a).)

“Article

I, section 1 of the California Constitution recognizes a number of inalienable rights, including the right to privacy.”

(John B. v. Superior Court (2006) 38 Cal.4th 1177, 1198.).

“[C]ourts must balance the right of civil litigants to discover relevant facts against the privacy interests of persons subject to discovery.” (Id. at p. 1199.) “[E]ven where the plaintiff can establish a compelling state interest in discovery . . . precision of compelled disclosure is required so that the right of privacy is not curtailed except to the extent necessitated by the legitimate governmental objective.” (Id. at pp. 1199-1200, quotation marks and brackets omitted.) The intrusion “may only be done on the basis of ‘practical necessity’ [citation] and ‘the compelled disclosure must be narrowly drawn to assure maximum protection of the constitutional interests at stake.’” (Id. at p. 1200, brackets omitted.)

“The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citation.] The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (Williams v. Superior Court (“Williams”) (2017) 3 Cal.5th 531, 552-553.)

The right to privacy extends to medical records. (John B. v. Superior Court, supra, 38 Cal.4th at p. 1198.)

III.

DISCUSSION

Defendants

move to quash subpoenas issued by Plaintiff to Edwin Haronian MD, Hanna Brophy Los Angeles, Oracle Law Firm Costa Mesa, and Synapse Lien Unit Encino. (Motion p. 2.) As relevant here, Defendants argue the subpoenas seek irrelevant private records and violate Defendant Cisse’s constitutional right to privacy. (Motion p. 2.)

The

deposition subpoena issued to Edwin Haronian MD seeks the following:

Any

and all medical and billing records relating to IBRAHIMA EL HADJI CISSE's workers' compensation claim, EAMS case number ADJ18333653, including records of examination, diagnosis, treatment, prognosis, referrals, prescriptions, diagnostic testing, imaging, work restrictions, disability status, impairment ratings, charges, payments, and balances, for the period April 10, 2023 to the present.

This

request is limited to records relating to the injuries, conditions, treatment, or medical expenses at issue in the workers' compensation claim arising on or about April 10, 2023, EAMS case number ADJ18333653.

IBRAHIMA

EL HADJI CISSE was born on 05/08/2003.

(King

Declaration Ex. A pdf pp. 7-8.)

The

deposition subpoena issued to Oracle Law Firm Costa Mesa seeks the following:

Any

and all documents, records, electronically stored information, and tangible materials in your possession, custody, or control that relate to any injuries, conditions, symptoms, treatment, evaluation, diagnosis, prognosis, disability, impairment, work restrictions, or medical billing claimed by or on behalf of IBRAHIMA EL HADJI CISSE arising from or relating to the April 10, 2023 accident, EAMS case number ADJ18333653, including but not limited to medical records, billing records, diagnostic imaging and testing, worker's compensation records, prior or subsequent injury records, employment-related medical documents, and insurance documents or claims.

IBRAHIMA

EL HADJI CISSE was born on 05/08/2003.

(King

Declaration Ex. A pdf pp. 12-13.)

The

deposition subpoena issued to Hanna Brophy Los Angeles seeks the following:

Any

and all documents, records, electronically stored information, and tangible materials in your possession, custody, or control that relate to any injuries, conditions, symptoms, treatment, evaluation, diagnosis, prognosis, disability, impairment, work restrictions, or medical billing claimed by or on behalf of IBRAHIMA EL HADJI CISSE arising from or relating to the April 10, 2023 accident, EAMS case number ADJ18333653, including but not limited to medical records, billing records, diagnostic imaging and testing, worker's compensation records, prior or subsequent injury records, employment-related medical documents, and insurance documents or claims.

IBRAHIMA

EL HADJI CISSE was born on 05/08/2003.

(King

Declaration Ex. A pdf pp. 17-18.)

Finally,

the deposition subpoena issued to Synapse Lien Unit Encino seeks the following:

Any

and all medical and billing records relating to IBRAHIMA EL HADJI CISSE's workers' compensation claim, EAMS case number ADJ18333653, including records of examination, diagnosis, treatment, prognosis, referrals, prescriptions, diagnostic testing, imaging, work restrictions, disability status, impairment ratings, charges, payments, and balances, for the period April 10, 2023 to the present.

This

request is limited to records relating to the injuries, conditions, treatment, or medical expenses at issue in the workers' compensation claim arising on or about April 10, 2023, EAMS case number ADJ18333653.

IBRAHIMA

EL HADJI CISSE was born on 05/08/2003.

(King

Declaration Ex. A pdf pp. 22-23.)

Defendants

argue the subpoenas should be quashed because they violate Defendant Cisse's right to privacy and seek medical records unrelated to the claims at issue here. (Motion p. 10.)

In

opposition, Plaintiff argues Defendants' Motion does not satisfy the Williams factors because "[w]hen defendant makes a workers compensation claim and places his injuries at issue, and when those claims are publicly available for the world to find, there is no objectively reasonable expectation of privacy or legally protected privacy interest." (Opposition p. 6.)

Plaintiff

cites no authority for this statement. The court is not persuaded Defendant Cisse placed his injuries at issue in this matter by making a workers compensation claim. Nor is the court persuaded Defendant Cisse has no objectively reasonable expectation of privacy or legally protected privacy interest simply because Defendant Cisse made a worker's compensation claim. Plaintiff also indicates Defendant Cisse has no right to privacy because the workers compensation claim is "publicly available . . ." (Opposition p. 6.) The court is not persuaded. Plaintiff appears to be arguing that because Defendant Cisse made a workers compensation claim, then Defendant Cisse has no right to privacy for anything relating to that claim. The court is aware of no authority stating a person loses their constitutional right to privacy for all records relating to a claim, simply because the fact the person filed a claim is public knowledge. If that were the case, then no plaintiff would ever have a right to privacy pertaining to any issue relating to any complaint – simply because it is public knowledge the plaintiff filed a complaint.

Plaintiff

also cites "Davis v. Superior Court" stating, in that matter "the Court of Appeal permitted discovery of medical records where the records were directly relevant to a condition placed at issue, recognizing that privacy interests may yield when the information is directly relevant and appropriately limited." (Opposition p. 11.)

Plaintiff

includes only the name of the case. (Opposition p. 11.) Assuming Plaintiff is referring to Davis v. Superior Court ("Davis") (1992) 7 Cal.App.4th 1008, the court is not persuaded Davis supports Plaintiff's position.

In Davis, the Court of Appeal discussed whether waiver applied. The Court noted:

In determining whether one has waived the right of privacy by bringing suit, our Supreme Court has noted that although there may be an implicit partial waiver, the scope of such waiver must be narrowly, rather than expansively construed, so that plaintiffs will not be unduly deterred from instituting lawsuits by fear of exposure of private activities. [Citations.] An implicit waiver of a party's constitutional rights encompasses only discovery directly relevant to the plaintiff's claim and essential to the fair resolution of the lawsuit. [Citation.] There must be a compelling and opposing state interest justifying the discovery. [Citation.] Even when discovery of private information is found directly relevant to the issues of ongoing litigation, it will not be automatically allowed; there must then be a careful balancing of the compelling public need for discovery against the fundamental right of privacy. [Citation.] The scope of any disclosure must be narrowly circumscribed, drawn with narrow specificity, and must proceed by the least intrusive manner.

(Davis, supra, 7 Cal.App.4th 1014, original italics.) Here, Defendant Cisse is claiming a right to privacy. Defendant Cisse did not file this action. Thus, Davis' discussion of waiver in the context of a party bringing a suit is not applicable. Moreover, the Court of Appeal in Davis held that the trial court's denial of a motion to quash violated the petitioner's constitutional right to privacy. (Id. at p. 1020.) Thus, Davis does not support Plaintiff's position.

Plaintiff further argues:

Not only have Defendants provided no reason to believe Defendant Cisse has an objectively reasonable expectation of privacy regarding these records, they

have given no reason to believe that Plaintiff's subpoenas are a serious intrusion. Defendants pepper their motion with colorful language to gloss over this absence, calling the subpoenas a "particularly stark" "constitutional violation," a "severe invasion of Cisse's privacy," and describe Plaintiff "rifl[ing] through his confidential medical records and privileged attorney-client communications" like some KGB operative searching for kompromat in the dead of night, but Plaintiff's subpoenas are none of these things. Defs.' Mot. To Quash, p. 6, ll. 6-15.

(Opposition
p. 7.)

As
far as the court can tell, no one is asserting Plaintiff is acting like a "KGB operative searching for kompromat in the dead of night . . ." Defendants are merely asserting Defendant Cisse's right to privacy in his medical records. A right to privacy in medical records is established in California law. (John B. v. Superior Court, supra, 38 Cal.4th at p. 1198.)

Plaintiff
also argues the records "may constitute party admissions, prior inconsistent statements, or impeachment evidence." (Opposition p. 6.) Plaintiff then argues that "[f]or these reasons, Defendant Cisse has not objectively reasonable expectation of privacy in these circumstances and Defendants have provided no affirmative argument to the contrary." (Opposition p. 6.)

Plaintiff
is confusing the issues. The issue here is not whether statements in the records may be admissible. The issue here is whether Defendant Cisse has a right to privacy preventing Plaintiff from obtaining the records.

Plaintiff
also argues they have no interest in humiliating Defendant Cisse and there is no possibility of chilling Defendant Cisse's relationship with his physician because Defendant Cisse was discharged and his physician "determined that 'no work restrictions or future medical treatment were necessary.'" (Opposition p. 7.) These arguments are not persuasive. Plaintiff cannot state with certainty that Defendant Cisse will not be humiliated by disclosure of their medical records. Moreover, if a party could defeat this issue by simply stating they have no intention of humiliating the

person whose medical records they seek to obtain, then it would cease to exist. Likewise, the court interprets the concern regarding a chilling effect to go beyond this lawsuit. Thus, the fact Defendant Cisse may not experience a chilling effect with the particular doctor is irrelevant.

Plaintiff's

subpoenas explicitly seek to obtain Defendant Cisse's medical records. (King Declaration Ex. A.) The court finds Defendant Cisse has a legally protected privacy interest, and has an objectively reasonable expectation of privacy in these circumstances. Plaintiff argues "Defendant's workers compensation injuries and entities are records that are publicly available and therefore there is no expectation of privacy when defendant makes a claim for injuries and seeks payment from a responsible party." (Opposition p. 2.) The court is not persuaded. If the records are publicly available, as Plaintiff proposes, then Plaintiff has no need for these subpoenas. The existence of Defendant Cisse's worker's compensation claim may be publicly available, but the court is not persuaded Defendant Cisse's medical records relating to that claim are publicly available. Thus, the court concludes the threatened intrusion here is serious because Plaintiff seeks Defendant Cisse's medical records.

Plaintiff

argues the subpoenas are narrowly tailored because they are limited to "[a]ny and all documents . . . arising from or relating to the April 10, 2023 accident, EAMS case number ADJ18333653." (Opposition p. 9.)

In

reply, Defendants argue the language "'arising from or relating to' does not meaningfully narrow the requests" because it "invites the subpoenaed entities to produce every document in the workers' compensation file that mentions the accident, without regard to whether the document is privileged, confidential, employment-related, or relevant to the claims and defenses in this litigation." (Reply pp. 2-3.)

The

court agrees with Defendants. The language "[a]ny and all documents . . . arising from or relating to" does not adequately limit the subpoenas.

Plaintiff

also argues Defendant Cisse placed the circumstances of the incident and Defendant Cisse's conduct directly at issue, so Plaintiff's subpoenas are

directly relevant. (Opposition p. 9.) Plaintiff further cites *Harris v. Superior Court* (“*Harris*”) (1992) 3 Cal.App.4th 661, 665 as standing for the proposition, “[a]s stated supra, to defeat Defendants’ privacy concerns, Plaintiff need only show their request is ‘directly relevant’ to a Defendant’s claim or defense.” (Opposition p. 12.)

Plaintiff’s

statement they need only show direct relevance dilutes the issue and fails to account for the Supreme Court of California’s discussion in *Williams*, supra, 3 Cal.5th 531, 552-553. The test here is not whether the subpoenas seek relevant information. The court understands that Defendant Cisse’s workers’ compensation file relating to the accident at issue here very likely contains some relevant information. But even if the court viewed Defendant Cisse’s filing a workers’ compensation claim constitutes a waiver, “[a]n implicit waiver of a party’s constitutional rights encompasses only discovery directly relevant to the plaintiff’s claim and essential to the fair resolution of the lawsuit” and “[t]here must be a compelling and opposing state interest justifying the discovery.” (*Davis v. Superior Court* (1992) 7 Cal.App.4th at p. 1014, original italics.) “The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citation.] The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (*Williams*, supra, 3 Cal.5th at pp. 552-553.)

Plaintiff argues

they should be able to obtain the records because “Defendants are not merely disputing abstract damages; they are affirmatively relying on the circumstances of the collision, the force of impact, the parties’ physical presentation, and Cisse’s version of the event to challenge causation and injury.” (Opposition p. 10.) Plaintiff argues the requested records “are directly tied to the same incident date, the same driver, and the same factual narrative Defendants intend to use in this case.” (Opposition p. 10.) Plaintiff argues the records are “relevant because they almost certainly contain [Defendant] Cisse’s own statements about how the collision occurred, whether he claimed any injury or symptoms from the event, what mechanism of injury he reported, whether he

attributed any condition to the same collision, whether he made statements inconsistent with his discovery responses or deposition testimony, and whether third-party evaluators documented facts bearing on the collision, causation, force, impairment, disability, or work restrictions.” (Opposition p. 11.) Plaintiff also argues inconsistencies make the records “relevant to credibility, impeachment, and the completeness and accuracy of Defendants’ discovery responses.” (Opposition p. 12.) Finally, Plaintiff argues they need only show direct relevance, and Defendants made the claim “directly relevant to this matter by characterizing the collision as ‘light contact,’ the damage as ‘negligible,’ and denying Defendant Cisse’s injuries and intent to file a workers’ compensation claim to bolster those other claims.” (Opposition pp. 12-13.)

On balance the court finds the competing interests set forth by the parties weigh against disclosure. The subpoenas seek “[a]ny and all medical and billing records relating to [Defendant Cisse’s] workers’ compensation claim . . .” and,

Any and all documents, records, electronically stored information, and tangible materials in your possession, custody, or control that relate to any injuries, conditions, symptoms, treatment, evaluation, diagnosis, prognosis, disability, impairment, work restrictions, or medical billing claimed by or on behalf of [Defendant Cisse] arising from or relating to the April 10, 2023 accident, EAMS case number ADJ18333653, including but not limited to medical records, billing records, diagnostic imaging and testing, worker’s compensation records, prior or subsequent injury records, employment-related medical documents, and insurance documents or claims.

(See King Declaration Ex. A.) Plaintiff argues these records may contain documents relating to matters such as the extent of the collision’s contact and whether the damage was negligible. (Opposition p. 13.) It is a reasonable assumption these records could encompass, for example, Defendant Cisse’s historical medical records that have no bearing on this matter. Moreover, although Defendant Cisse may be contesting Plaintiff’s claims by arguing the contact was light and the damage was negligible, that does not mean Defendant Cisse has affirmatively put their own injuries at issue in this matter. If Defendant Cisse is contesting that Plaintiff sustained injuries, Defendant Cisse is merely placing the burden of proving injuries on Plaintiff – where the burden lay in the first place. Finally, even if the court adopted Plaintiff’s position and found information concerning

whether Defendant Cisse was injured due to the accident and the extent of his injuries was discoverable, the court is not persuaded this information cannot be obtained by less intrusive means, such as additional written discovery requests or by deposing Defendant Cisse.

Plaintiff also requests

the court "modify the subpoenas rather than quash them" because "[a] complete quash order would improperly prevent Plaintiff from obtaining relevant, non-privileged evidence." (Opposition p. 15.) Plaintiff proposes no modifications to the subpoenas that would address the court's privacy concerns here. The court, therefore, denies Plaintiff's request to modify the subpoenas.

Defendants request

\$3,819.00 in monetary sanctions against Plaintiff. (Motion p. 2.) This reflects 7.9 hours of attorneys' fees to prepare the Motion, and 0.5 hours of anticipated fees to review the opposition, 1.5 hours to prepare the reply, and 1.5 hours to appear at the hearing, at \$335.00 per hour. (King Declaration ¶ 11.)

Code

of Civil Procedure section 1987.2, subdivision (a) states:

Except as specified in

subdivision (c), in making an order pursuant to motion made under subdivision (c) of Section 1987 or under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive.

The court finds

Plaintiff failed to oppose the Motion with substantial justification. The court further finds Defendants' request for monetary sanctions is excessive. The court will grant Defendants' request for monetary sanctions against Plaintiff in the reduced sum of \$1,842.50, reflecting 3.0 hours of attorneys' fees to prepare the Motion, 0.5 hours to review the opposition, 1.0 hours to prepare the reply, and 1.0 hour to appear at the hearing, at \$335.00 per hour. (King Declaration ¶ 11.)

Plaintiff

requests monetary sanctions against Defendants and Defendants' counsel in the sum of \$3,500.00. (Opposition p. 15.) Plaintiff has not successfully opposed the Motion. Plaintiff's request for monetary sanctions is denied.

IV.

CONCLUSION

For the foregoing reasons, the Motion is granted. The court also grants Defendants' request for monetary sanctions in the reduced sum of \$1,842.50, to be paid by Plaintiff to Defendants' counsel within thirty (30) days of this order.

Dated: July 28, 2026

Hon. Eric
Harmon

Judge
of the Superior Court